



# JOHNSTONE SUPPLY

**Rochester:** 95 Halstead Street, 14610  
Toll Free: (800) 724-8806  
Tel: (585) 482-8000 • Fax: (585) 482-6000  
eMail: store141@johnstonesupply.com

**Syracuse:** 835 Canal Street, 13210  
Toll Free: (877) 724-8806  
Tel: (315) 479-8800 • Fax: (315) 479-8600  
eMail: store269@johnstonesupply.com

Order on-line at [www.JohnstoneSupply.com/141](http://www.JohnstoneSupply.com/141)

## NEW HIRE CHECKLIST

**Employee Name:** Corey Graham

**Employee ID #:** 734

**Hire Date:** 10/15/19

### 1. For Controller to do prior to New Hire starting:

- ☒ Set up Computer Profile, Windows Login
- ☒ Set up Microsoft Office 365 (email, calendar, skype, intranet services)
- ☒ Set up Inform-ERP System
- ☒ Set up Johnstone Employee Network (JEN/JXI)
- ☒ Set up Voicemail (Extension)
- ☒ Add to Phone List
- ☒ Set up as User in Address Book in Copiers & Printers
- ☒ Set up in Johnstone University- JU Online
- ☒ Set up Johnstone Email
- ☒ Set up Building Access & Alarm Code

### 2. For HR to do with New Hire - complete the following items during orientation:

- ☒ Sign Offer Letter
- ☒ Application
- ☒ Sign Job Description
- ☒ New Hire Form/Employee Information Form
- ☒ Pay Rate Acknowledgement-2 copies
- ☒ W4 Tax Withholding Form
- ☒ IT-2104 Employee's Withholding Allowance Certificate
- ☒ Post-Offer Self-Identification Form
- ☒ I-9 Eligibility Form
- ☒ Direct Deposit Form
- ☒ Benefits Overview
- ☒ Receipt of Handbook
- ☒ Receipt of Non-Harassment Policy
- ☒ Receipt of Sexual Harassment Prevention Policy
- ☒ Receipt of Sexual Harassment Complaint Form
- ☒ Receipt of Smoking Policy
- ☒ Receipt of Confidentiality Policy



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- ☒ Authorization to Deduct Expenses
- ☒ Customer Cash Account Application

### 3. HR will hand Employee during orientation:

- ☒ Employee Handbook
- ☒ Copy of Benefits Overview – Benefits Contacts
- ☒ Skylight Pay Options Program
- ☒ New Health Insurance Marketplace Coverage
- ☒ COBRA General Notice
- ☒ Allworx Voicemail OGreetings Setup Guide
- ☒ Payroll Schedule
- ☒ Commission & Bonus Schedule
- ☒ Telephone Directory
- ☒ Copy of Pay Rate Acknowledgement Form
- ☒ Copy of Job Description
- ☒ Copy of Offer Letter

### 4. HR to do Training during New Hire's orientation:

- ☒ Sexual Harassment Prevention Training- Quiz & Evaluation

### 5. For HR to do on New Hire's first day after orientation is complete:

- ☒ Set up in Payroll and Time & Attendance
- ☒ ~~Add to Org Chart~~
- ☒ Scan New Hire paperwork and Save to Online Employee File
- ☒ Create Personnel, Medical & Payroll files & Labels for New Hire paperwork
- ☒ File Form I-9 in Active Forms I-9 Folder
- ☒ File Background Check forms and information in the Background Check File
- ☒ Add Employee to Payroll File and Commission/Bonus File online



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September 25, 2019

Mr. Corey Graham  
9420 Woods Rd  
Bridgeport, NY 13030

Dear Corey:

I am pleased to offer you the position of Counter Sales and Service Associate effective Monday, October 15, 2019. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as your Branch Manager.

Your compensation includes three components: salary, bonus and a benefit program. Our store hours are M-F 7:30am to 5:00pm and Saturdays 8:00am to 12:30pm. A typical workweek will be between 40-45 hours. We expect your wages, including overtime, will be approximately \$1480.77, paid biweekly; an actual hourly rate will be calculated for you when you start.

Upon the successful completion of your 90-day probationary period you will become eligible for a number of benefits as outlined on the attached benefits summary. Additionally, upon the completion of 180 days of employment you will become eligible to participate in our sales bonus program.

Subject to a routine motor vehicle and background check, your starting package is based upon your indications and statements to me and to my staff that you are fully capable of meeting the requirements and description of the job as has been outlined to you previously. This offer is made on an "at will" basis and should not be construed as a guarantee of employment for any specific duration.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than October 1, 2019. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Corey, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

*Welcome to JOHNSTONE SUPPLY!*

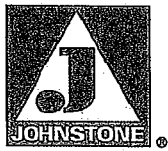
Sincerely,

George Shields  
Syracuse Branch Manager  
Enclosures (2)

By signing below, you are accepting this position and our offer.

Corey Graham *Corey Graham*

Date Oct 14 2019



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## JOB DESCRIPTION

Job Title: **Counter Sales and Service Associate**  
FLSA Status: **Non-Exempt**  
Reports To: **Branch Manager**

### Position Summary:

Contributes to branch sales growth and profitability by providing prompt, friendly and professional service to Johnstone customers in-person, over the phone and by electronic communications.

### Subordinate Summary:

This position has no formal supervisory responsibilities.

### Essential Job Results and Responsibilities:

#### *Customer Service Results and Responsibilities*

1. Answers incoming telephone calls and emails and greets customers who walk in the store. Handles multiple customers and customer requests simultaneously while maintaining a friendly and professional manner.
2. Assists customers in making product selections by asking questions and actively listening to identify customer needs. Assists with system or product troubleshooting and answering technical questions. Identifies alternate or substitute products to meet customer needs.
3. Assists customers with the use of Johnstone Supply e-commerce and mobile application questions.
4. Researches and sources product for customers using a variety of tools, including point-of-sale computer system, catalogs, websites, JXI, and industry and store contacts.
5. Enters sales orders into point-of-sale computer system for invoicing or cash payments. Processes customer returns and warranties following company guidelines.
6. Follows up promptly on all customer requests for information, quotes, alternative parts and delivery dates. Proactively communicates with customers about any expected delays or issues with their order.
7. Develops good working relationships and rapport with customers. Greets regular customers by name.
8. Maintains the highest standards in cleanliness and appearance of the showroom through stocking shelves, housekeeping, creating displays, etc.
9. Resolves customer complaints and disputes in a timely, professional manner that balances customer requests with business needs.
10. Follows company pricing and credit guidelines

#### *Sales Results and Responsibilities*

1. Prepares and issues sales quotes following company guidelines. Follows up on quotes to

## Job Description- Counter Sales and Service Associate

secure sales.

2. Educates customers/prospects regarding the variety of products available for sale and the benefits of shopping at Johnstone Supply.
3. Increases customer satisfaction and store profitability by proactively recommending additional items a customer might need and promotions that might interest them.
4. Uncovers and communicates sales lead information to outside sales staff and management.
5. Promotes surplus, sale, discounted and obsolete inventory to customers in order to maintain proper inventory levels. Communicates unexpected increases or decreases in product demand and inventory to purchasing or management.

### *General Results Responsibilities*

1. Maintains knowledge of new and existing products and inventory by participating in training, studying Johnstone and industry catalogs and web sites, and seeking knowledge from experienced staff members and factory representatives.
2. Assists in receiving, shipping and general warehouse duties.
3. Is organized and orderly, and capable of maintaining appropriate records.
4. Completes all transactions and necessary paperwork accurately and in a timely manner.
5. May represent Johnstone Supply at trade associations, events and local chapters.

Johnstone Supply believes that each employee's contribution should not be limited by the assigned responsibilities. Therefore, it is expected that each employee will offer his/her services wherever and whenever necessary to ensure the success of our endeavors.

### **Qualifications:**

To perform this job successfully, an individual must be able to perform each essential job function satisfactorily. The requirements listed below are representative of the knowledge, skills, and/or abilities required. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

### *Education and Experience:*

- Required: High School Diploma or G.E.D and minimum of two years related experience and/or training in the HVAC/R industry; *OR* equivalent combination of education and experience.
- Preferred: The above plus 2 years experience as a Sales and Service Associate in the HVAC/R or similar industry.

### *Job-Specific Knowledge, Skills & Abilities*

- Ability to provide consistent, professional customer service.
- Ability to multi-task and maintain focus while prioritizing the needs of several customers at once.
- Problem-solving skills: listening to, interpreting, and meeting the needs of others; diagnosing and rectifying problems that will often require attention to detail.
- Demonstrated understanding and application of effective sales strategies and techniques.
- Skill in building long term customer relationships.
- Ability to maintain a positive, courteous, and friendly demeanor.
- General knowledge of HVAC/R products, concepts and the industry as a whole.
- Skill in proactively communicating (both verbal and written) to establish mutual respect and understanding.

## Job Description- Counter Sales and Service Associate

- Math skills, including ability to: add, subtract, multiply, divide; and calculate margins, discounts and percentages.
- Skill in using point-of-sale computer systems to locate information and process transactions.
- Skill in using web-based tools to research product and information.
- Ability to work productively in teams with a wide range of people.
- Ability to work independently with minimal direction.
- Ability to follow written instructions and documented procedures.

### *Expected Work Behaviors:*

- Keeps the company's best interest in mind when considering or addressing issues.
- Dedication to attending work and work-related functions prepared and on time.
- Maintains a professional personal appearance.
- Strives for continuous self-improvement and for improvement of the business with respect to sales and service quality.

### **Physical Demands & Work Environment:**

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

*Physical:* While performing the duties of this job, the employee is required to stand and walk on a hard surface for the majority of the workday. The employee is regularly required to reach with hands and arms, climb and balance; stoop, kneel, crouch, or crawl. The employee is frequently required to lift and carry and/or move up to 50 pounds, and occasionally required to lift up to 70 pounds. Specific vision abilities required by this job include close vision, color vision, depth perception, and ability to adjust focus. The ability to speak and hear sufficiently to provide customer service is required.

*Store Environment:* Medium to large store with shelves and bins, most work is performed with telephone, material handling equipment, computer, fax, printer, and in some cases an RF scanner.

### **Skills Summary:**

|                              |                                  |
|------------------------------|----------------------------------|
| Sales Aptitude               | Diplomacy                        |
| Energetic                    | Problem Solving Skills           |
| Computer Skills              | Interpersonal & Telephone Skills |
| Organization                 | Time Management                  |
| Math Aptitude                | Oral Communications Skills       |
| Reading Skills               | Technical Skills                 |
| Written Communication Skills | Ability to lift up to 70 pounds  |
| Mechanical Skills            |                                  |

## Job Description- Counter Sales and Service Associate

The Counter Sales and Service Associate will maintain the strictest confidentiality on all corporate matters including, but not limited to: marketing strategies, operational structures, pricing and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved:

Cecilia Ryan      Oct 14 2019  
Incumbent                      Date

HR / [Signature]      10/14/19  
Supervisor                      Date

## Employee Information Form

### Employer to Complete

Client Number 0827 - G139

Date 10/14/19

Select One ☒ New Employee  
☐ Update Current Employee Information  
☐ Rehire Previous Employee on Paychex System

Employee Number 734 Department Number 200 Sales 269

Job Title Counter Sales and Service Associate

Hire Date 10/15/19

Birth Date 04/06/1992

Workers' Compensation Class Code 7999 ☒ Full-time ☐ Part-time ☐ Seasonal

Salary (Per Pay Period) \_\_\_\_\_

OR

Salary memo - \$1480.77

Hourly Rate 1 \$ 11.85 Hourly Rate 2 \$ \_\_\_\_\_ Hourly Rate 3 \$ \_\_\_\_\_

Payroll Frequency ☐ Weekly ☒ Bi-weekly ☐ Semi-monthly ☐ Monthly

Federal Exemptions married 1 Additional \$ \_\_\_\_\_ Flat \$ \_\_\_\_\_

What state does this employee work in? New York

What state should be withholding for this employer? New York

State Exemptions Married 1 Additional \$ \_\_\_\_\_ Flat \$ \_\_\_\_\_

Are local taxes required? ☐ Yes - Town/City/County \_\_\_\_\_ ☒ No

Will direct deposit be sent to this employee? ☒ Yes ☐ No

### Employee to Complete

Last Name Graham First Name Corey Initial D

Address 9420 woods Rd, County ~~NY~~ madison

City Bridport State NY Zip Code 13030

Telephone Number (315) 516-6867 Sex ☒ Male ☐ Female

Work E-mail Address CoreyGraham2682@yahoo.com

Personal E-mail Address (optional) \_\_\_\_\_

Marital Status ☐ Single ☒ Married ☐ Married, but Withhold at Higher Single Rate

Social Security Number 091-80-1484

### Emergency Contact Information

Name Carrie Graham Relationship married/wife

Emergency Telephone (315) 753-9194



**Notice and Acknowledgement of Pay Rate and Payday**  
**Under Section 195.1 of the New York State Labor Law**  
**Notice for Exempt Employees**

**1. Employer Information**

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY  
Johnstone Supply of Rochester  
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St Suite 3  
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

**3. Employee's pay rate(s):** State if pay is based on an hourly, salary, day rate, piece rate, or other basis.

Salary

Employers may not pay a non-hourly rate to a non-exempt employee in the Hospitality Industry, except for commissioned salespeople.

**4. Allowances taken:**

☒ None

☐ Tips \_\_\_\_\_ per hour

☐ Meals \_\_\_\_\_ per meal

☐ Lodging \_\_\_\_\_

☐ Other \_\_\_\_\_

**5. Regular payday:** Friday \_\_\_\_\_

**6. Pay is:**

☐ Weekly

☒ Bi-weekly

☐ Other: \_\_\_\_\_

**7. Overtime Pay Rate:**

Most workers in NYS must receive at least 1½ times their regular rate of pay for all hours worked over 40 in a workweek, with few exceptions. A limited number of employees must only be paid overtime at 1½ times the minimum wage rate, or not at all.

This employee is exempt from overtime under the following exemption (optional):

**8. Employee Acknowledgement:**

On this day, I received notice of my pay rate, overtime rate (if eligible), allowances, and designated payday. I told my employer what my primary language is.

**Check one:**

☒ I have been given this pay notice in English because it is my primary language.

☐ My primary language is \_\_\_\_\_, I have been given this pay notice in English only, because the Department of Labor does not yet offer a pay notice form in my primary language.

Corey Graham

Print Employee Name

Employee Signature

Date 10/15/19

Kenneth Livingston, President

Preparer Name and Title

**The employee must receive a signed copy of this form. The employer must keep the original for 6 years.**

**Please note:** It is unlawful for an employee to be paid less than an employee of the opposite sex for equal work. Employers also may not prohibit employees from discussing wages with their co-workers.

# Form W-4 (2019)

**Future developments.** For the latest information about any future developments related to Form W-4, such as legislation enacted after it was published, go to [www.irs.gov/FormW4](http://www.irs.gov/FormW4).

**Purpose.** Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay. Consider completing a new Form W-4 each year and when your personal or financial situation changes.

**Exemption from withholding.** You may claim exemption from withholding for 2019 if **both** of the following apply.

- For 2018 you had a right to a refund of **all** federal income tax withheld because you had **no** tax liability, **and**
- For 2019 you expect a refund of **all** federal income tax withheld because you expect to have **no** tax liability.

If you're exempt, complete **only** lines 1, 2, 3, 4, and 7 and sign the form to validate it. Your exemption for 2019 expires February 17, 2020. See Pub. 505, Tax Withholding and Estimated Tax, to learn more about whether you qualify for exemption from withholding.

## General Instructions

If you aren't exempt, follow the rest of these instructions to determine the number of withholding allowances you should claim for withholding for 2019 and any additional amount of tax to have withheld. For regular wages, withholding must be based on allowances you claimed and may not be a flat amount or percentage of wages.

You can also use the calculator at [www.irs.gov/W4App](http://www.irs.gov/W4App) to determine your tax withholding more accurately. Consider

using this calculator if you have a more complicated tax situation, such as if you have a working spouse, more than one job, or a large amount of nonwage income not subject to withholding outside of your job. After your Form W-4 takes effect, you can also use this calculator to see how the amount of tax you're having withheld compares to your projected total tax for 2019. If you use the calculator, you don't need to complete any of the worksheets for Form W-4.

Note that if you have too much tax withheld, you will receive a refund when you file your tax return. If you have too little tax withheld, you will owe tax when you file your tax return, and you might owe a penalty.

**Filers with multiple jobs or working spouses.** If you have more than one job at a time, or if you're married filing jointly and your spouse is also working, read all of the instructions including the instructions for the Two-Earners/Multiple Jobs Worksheet before beginning.

**Nonwage income.** If you have a large amount of nonwage income not subject to withholding, such as interest or dividends, consider making estimated tax payments using Form 1040-ES, Estimated Tax for Individuals. Otherwise, you might owe additional tax. Or, you can use the Deductions, Adjustments, and Additional Income Worksheet on page 3 or the calculator at [www.irs.gov/W4App](http://www.irs.gov/W4App) to make sure you have enough tax withheld from your paycheck. If you have pension or annuity income, see Pub. 505 or use the calculator at [www.irs.gov/W4App](http://www.irs.gov/W4App) to find out if you should adjust your withholding on Form W-4 or W-4P.

**Nonresident alien.** If you're a nonresident alien, see Notice 1392, Supplemental Form W-4 Instructions for Nonresident Aliens, before completing this form.

## Specific Instructions

### Personal Allowances Worksheet

Complete this worksheet on page 3 first to determine the number of withholding allowances to claim.

**Line C. Head of household please note:** Generally, you may claim head of household filing status on your tax return only if you're unmarried and pay more than 50% of the costs of keeping up a home for yourself and a qualifying individual. See Pub. 501 for more information about filing status.

**Line E. Child tax credit.** When you file your tax return, you may be eligible to claim a child tax credit for each of your eligible children. To qualify, the child must be under age 17 as of December 31, must be your dependent who lives with you for more than half the year, and must have a valid social security number. To learn more about this credit, see Pub. 972, Child Tax Credit. To reduce the tax withheld from your pay by taking this credit into account, follow the instructions on line E of the worksheet. On the worksheet you will be asked about your total income. For this purpose, total income includes all of your wages and other income, including income earned by a spouse if you are filing a joint return.

**Line F. Credit for other dependents.** When you file your tax return, you may be eligible to claim a credit for other dependents for whom a child tax credit can't be claimed, such as a qualifying child who doesn't meet the age or social security number requirement for the child tax credit, or a qualifying relative. To learn more about this credit, see Pub. 972. To reduce the tax withheld from your pay by taking this credit into account, follow the instructions on line F of the worksheet. On the worksheet, you will be asked about your total income. For this purpose, total

----- Separate here and give Form W-4 to your employer. Keep the worksheet(s) for your records. -----

| Form <b>W-4</b><br>Department of the Treasury<br>Internal Revenue Service                                                                                                                                                                                                                                                                                                                                                                                         |  | <b>Employee's Withholding Allowance Certificate</b>                                                                                                                                                                                             |  | OMB No. 1545-0074<br><b>2019</b>                    |                                         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|-----------------------------------------------------|-----------------------------------------|
| <b>▶ Whether you're entitled to claim a certain number of allowances or exemption from withholding is subject to review by the IRS. Your employer may be required to send a copy of this form to the IRS.</b>                                                                                                                                                                                                                                                     |  |                                                                                                                                                                                                                                                 |  |                                                     |                                         |
| 1 Your first name and middle initial<br><b>Corey D</b>                                                                                                                                                                                                                                                                                                                                                                                                            |  | Last name<br><b>Graham</b>                                                                                                                                                                                                                      |  | 2 Your social security number<br><b>091-80-1484</b> |                                         |
| Home address (number and street or rural route)<br><b>4420 Woods Rd</b>                                                                                                                                                                                                                                                                                                                                                                                           |  | 3 <input type="checkbox"/> Single <input checked="" type="checkbox"/> Married <input type="checkbox"/> Married, but withhold at higher Single rate.<br>Note: If married filing separately, check "Married, but withhold at higher Single rate." |  |                                                     |                                         |
| City or town, state, and ZIP code<br><b>Bridgeport NY 13030</b>                                                                                                                                                                                                                                                                                                                                                                                                   |  | 4 If your last name differs from that shown on your social security card, check here. You must call 800-772-1213 for a replacement card. <input type="checkbox"/>                                                                               |  |                                                     |                                         |
| 5 Total number of allowances you're claiming (from the applicable worksheet on the following pages) . . . . .                                                                                                                                                                                                                                                                                                                                                     |  |                                                                                                                                                                                                                                                 |  | 5                                                   | <b>1</b>                                |
| 6 Additional amount, if any, you want withheld from each paycheck . . . . .                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                                                                                                                                                                                                                 |  | 6                                                   | \$                                      |
| 7 I claim exemption from withholding for 2019, and I certify that I meet <b>both</b> of the following conditions for exemption.<br>• Last year I had a right to a refund of <b>all</b> federal income tax withheld because I had <b>no</b> tax liability, <b>and</b><br>• This year I expect a refund of <b>all</b> federal income tax withheld because I expect to have <b>no</b> tax liability.<br>If you meet both conditions, write "Exempt" here . . . . . ▶ |  |                                                                                                                                                                                                                                                 |  | 7                                                   |                                         |
| Under penalties of perjury, I declare that I have examined this certificate and, to the best of my knowledge and belief, it is true, correct, and complete.                                                                                                                                                                                                                                                                                                       |  |                                                                                                                                                                                                                                                 |  |                                                     |                                         |
| Employee's signature<br>(This form is not valid unless you sign it.) ▶ <b>Corey D Graham</b>                                                                                                                                                                                                                                                                                                                                                                      |  |                                                                                                                                                                                                                                                 |  |                                                     |                                         |
| 8 Employer's name and address (Employer: Complete boxes 8 and 10 if sending to IRS and complete boxes 8, 9, and 10 if sending to State Directory of New Hires.)                                                                                                                                                                                                                                                                                                   |  |                                                                                                                                                                                                                                                 |  | 9 First date of employment                          | 10 Employer identification number (EIN) |



Department of Taxation and Finance

**Employee's Withholding Allowance Certificate****IT-2104**

New York State • New York City • Yonkers

|                                                                                                                              |                            |                                                   |
|------------------------------------------------------------------------------------------------------------------------------|----------------------------|---------------------------------------------------|
| First name and middle initial<br><b>Corey D</b>                                                                              | Last name<br><b>Graham</b> | Your social security number<br><b>091-80-1484</b> |
| Permanent home address (number and street or rural route)<br><b>9420 Woods Rd</b>                                            |                            | Apartment number                                  |
| City, village, or post office<br><b>Bridgeton</b>                                                                            | State<br><b>NY</b>         | ZIP code<br><b>13030</b>                          |
| Single or Head of household <input type="checkbox"/> Married <input checked="" type="checkbox"/>                             |                            |                                                   |
| Married, but withhold at higher single rate <input type="checkbox"/>                                                         |                            |                                                   |
| Note: If married but legally separated, mark an X in the Single or Head of household box.                                    |                            |                                                   |
| Are you a resident of New York City? ..... Yes <input checked="" type="checkbox"/> No <input type="checkbox"/>               |                            |                                                   |
| Are you a resident of Yonkers? ..... Yes <input type="checkbox"/> No <input type="checkbox"/>                                |                            |                                                   |
| <b>Complete the worksheet on page 3 before making any entries.</b>                                                           |                            |                                                   |
| 1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 20) .....             |                            | 1                                                 |
| 2 Total number of allowances for New York City (from line 35) .....                                                          |                            | 2                                                 |
| <b>Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.</b> |                            |                                                   |
| 3 New York State amount .....                                                                                                |                            | 3 1                                               |
| 4 New York City amount .....                                                                                                 |                            | 4                                                 |
| 5 Yonkers amount .....                                                                                                       |                            | 5                                                 |

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

|                                               |                         |
|-----------------------------------------------|-------------------------|
| Employee's signature<br><b>Corey D Graham</b> | Date<br><b>10/14/19</b> |
|-----------------------------------------------|-------------------------|

**Penalty** – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.

**Employee: detach this page and give it to your employer; keep a copy for your records.****Employer: Keep this certificate with your records.**

Mark an X in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

A Employee claimed more than 14 exemption allowances for NYS ..... A ☐

B Employee is a new hire or a rehire ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.):

Are dependent health insurance benefits available for this employee? ..... Yes ☐ No ☐

If Yes, enter the date the employee qualifies (mm-dd-yyyy):

|                                                                                                                                      |                                |
|--------------------------------------------------------------------------------------------------------------------------------------|--------------------------------|
| Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.) | Employer identification number |
|--------------------------------------------------------------------------------------------------------------------------------------|--------------------------------|

**Instructions****Changes effective for 2019**

Form IT-2104 has been revised for tax year 2019. Additional allowances are allowed for covered employees of employers who elected to pay the employer compensation expense tax and for employees who made contributions to a New York Charitable Gifts Trust Fund during 2018. The worksheet on page 3 and the charts beginning on page 4, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2019 Form IT-2104 and give it to your employer.

**Who should file this form**

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If you do not file Form IT-2104, your employer may use the same number of allowances you claimed on federal Form W-4. Due to differences in tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers. Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim

is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.
- The total income of you and your spouse has increased to \$107,650 or more for the tax year.
- You have significantly more or less income from other sources or from another job.
- You no longer qualify for exemption from withholding.

POST-OFFER SELF-IDENTIFICATION FORM

Name: Corey Graham

Date: 6/14/19

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

**GENDER:** (Check one)



Male



Female

**RACE/ETHNICITY:**

Are you Hispanic or Latino?

Yes ☐

No ☒

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

- |                                                                             |                                                                                                                                            |
|-----------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> White (Not Hispanic or Latino)          | <input type="checkbox"/> American Indian or Alaska Native (Not Hispanic or Latino)                                                         |
| <input type="checkbox"/> Asian (Not Hispanic or Latino)                     | <input type="checkbox"/> Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)                                                |
| <input type="checkbox"/> Black or African American (Not Hispanic or Latino) | <input type="checkbox"/> Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino) |

If you selected "Two or More Races" please identify the race with which you primarily identify:

- |                                                                             |                                                                                             |
|-----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> White (Not Hispanic or Latino)          | <input type="checkbox"/> American Indian or Alaska Native (Not Hispanic or Latino)          |
| <input type="checkbox"/> Asian (Not Hispanic or Latino)                     | <input type="checkbox"/> Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| <input type="checkbox"/> Black or African American (Not Hispanic or Latino) |                                                                                             |

**VETERAN STATUS:** (Check all that apply)

- ☒ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.
- ☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.
- ☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.
- Enter Date of Separation: \_\_\_\_\_
- ☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.
- ☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.



## Direct Deposit Enrollment/Change Form\*

Company Name and/or Client Number John Stone supply

Employee/Worker Name Corey Graham Employee/Worker Number 734

**EMPLOYEE/WORKER:** Retain a copy of this form for your records. Return the original to your employer/company.

**EMPLOYER/COMPANY:** Return this form to your local Paychex office. For clients using on-line services, please retain a copy of this document for your records.

### COMPLETE TO ENROLL / ADD / CHANGE BANK ACCOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

|                                                                                                                                                                                            |                                           |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------|
| Type of Account: <input checked="" type="checkbox"/> Checking <input type="checkbox"/> Savings                                                                                             | Accountholder's Name: <u>Corey Graham</u> |
| Routing/Transit Number <u>082303618</u>                                                                                                                                                    |                                           |
| Checking/Savings Account Number** <u>7005594285</u>                                                                                                                                        |                                           |
| Financial Institution ("Bank") Name <u>NBT Bank</u>                                                                                                                                        |                                           |
| I wish to deposit (check one): <input checked="" type="checkbox"/> 100 % of Net <input type="checkbox"/> Specific Dollar Amount \$ _____ .00 <input type="checkbox"/> Remainder of Net Pay |                                           |
| Type of Account: <input checked="" type="checkbox"/> Checking <input type="checkbox"/> Savings                                                                                             | Accountholder's Name: <u>Corey Graham</u> |
| Routing/Transit Number <u>                    </u>                                                                                                                                         |                                           |
| Checking/Savings Account Number** <u>                    </u>                                                                                                                              |                                           |
| Financial Institution ("Bank") Name <u>                    </u>                                                                                                                            |                                           |
| I wish to deposit (check one): <input type="checkbox"/> _____ % of Net <input type="checkbox"/> Specific Dollar Amount \$ _____ .00 <input type="checkbox"/> Remainder of Net Pay          |                                           |

### COMPLETE IF CHANGING EXISTING DEPOSIT AMOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

|                                                                                                                                                                                                                     |                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|
| Type of Account: <input type="checkbox"/> Checking <input type="checkbox"/> Savings                                                                                                                                 | Accountholder's Name: <u>                    </u> |
| Routing/Transit Number <u>                    </u>                                                                                                                                                                  |                                                   |
| Checking/Savings Account Number** <u>                    </u>                                                                                                                                                       |                                                   |
| Financial Institution ("Bank") Name <u>                    </u>                                                                                                                                                     |                                                   |
| I wish to change my deposit amount to (check one): <input type="checkbox"/> From _____ % to _____ % of Net <input type="checkbox"/> From \$ _____ .00 To \$ _____ .00 <input type="checkbox"/> Remainder of Net Pay |                                                   |

### EMPLOYEE/WORKER CONFIRMATION STATEMENT

#### PLEASE SIGN IN BLACK/BLUE INK ONLY

I authorize my employer/company to deposit my earnings into the bank account(s) specified above and, if necessary, to electronically debit my account to correct erroneous entries. I certify my account(s) allow these transactions. Furthermore, I certify that the above listed account number accurately reflects my intended receiving account. I agree that direct deposit transactions I authorize comply with all applicable laws. My signature below indicates that I am agreeing that I am either the accountholder or have the authority of the accountholder to authorize my employer/company to make direct deposits into the named account.

Employee/Worker Signature Corey Graham Date 10/14/19

**Note:** Digital or Electronic Signatures are not acceptable.

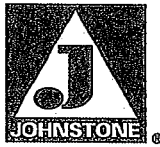
I confirm that the above named employee/worker has added or changed a bank account for direct deposit transactions processed by Paychex, Inc. I have reviewed the information provided and it is accurate to the best of my knowledge. My signature below indicates that I have the authority to execute this document on behalf of the Client.

Employer/Company Representative Printed Name: Ann F. Maynard

Employer/Company Representative Signature: Ann F. Maynard Date: 10/14/19

\* All fields are required except Employee/Worker Number.

\*\* Certain accounts may have restrictions on deposits and withdrawals. Check with your bank for more information specific to your account.



# JOHNSTONE SUPPLY

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## 2019 BENEFITS OVERVIEW \*

| BENEFIT                                                                                                                     | DESCRIPTION                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | EMPLOYEE CONTRIBUTION                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | VESTMENT PERIOD                                                              |
|-----------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------|
| Health Insurance offered through <b>Excellus BlueCross BlueShield and MVP HealthCare</b><br>(Premium Only Plan-Section 125) | <p><b>Excellus SimplyBlue Plus Gold 6</b> - Company covers 50% of the equivalent Silver 3 premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$1,400 single/\$4,300 family.</p> <p><b>MVP Liberty Silver 3</b> - Company covers 50% of the premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$2,200 single/\$5,400 family.</p> <p><b>Excellus SimplyBlue Plus Bronze 3</b> - Company covers 50% of the premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$2,000 single/\$5,000 family.</p> | <p>Balance of premium costs <u>not</u> covered by the Company <b>plus</b> applicable out of pocket annual maximum of \$2,800 single/\$5,600 family less employer provided HRA.</p> <p>50% of the premium costs <b>plus</b> co-pays up to annual out of pocket maximum of \$4,800 single/\$9,600 family less supplemental employer provided.</p> <p>50% of the premium costs <b>plus</b> applicable out of pocket annual maximum of \$6,550 single/\$13,100 family less employer provided HRA.</p> | Upon the completion of Ninety (90) days                                      |
| Health Club Allowance                                                                                                       | Company will pay 25% of annual dues to a maximum of \$100/year towards an active membership in a health club subject to prior approval.                                                                                                                                                                                                                                                                                                                                                                                                                                               | Any portion over company contribution.                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Upon the completion of Ninety (90) days                                      |
| Working Advantage®                                                                                                          | Online employee discounts and rewards program featuring some of the most respected vendors in the country for shopping, entertainment, theatre and events.                                                                                                                                                                                                                                                                                                                                                                                                                            | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Upon the completion of Ninety (90) days                                      |
| BalanceWorks®                                                                                                               | A fully integrated work/life Employee Assistance Program (EAP), designed to help effectively balance the competing demands of work and life before personal problems affect professional performance.                                                                                                                                                                                                                                                                                                                                                                                 | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Upon the completion of Ninety (90) days                                      |
| Flexible Spending Account (Section 125)                                                                                     | Pre-tax budgeting tool to help pay out-of-pocket medical, dental, and dependent care expenses not covered by other company insurance benefits.                                                                                                                                                                                                                                                                                                                                                                                                                                        | Voluntary contribution up to \$2,650 annually for medical; \$5,000 dependent care deduction.                                                                                                                                                                                                                                                                                                                                                                                                      | One (1) year, over 21 years of age, and works more than 1500 hours per year. |

## BENEFITS OVERVIEW- (Continued)

| BENEFIT                                                                              | DESCRIPTION                                                                                                                                                                                                                                          | EMPLOYEE CONTRIBUTION                                                                                                                            | VESTMENT PERIOD                                                                                                        |
|--------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------|
| Supplemental Short-Term Disability offered through AFLAC                             | Provides earnings coverage for up to 6 months of Temporary Disability when unable to work.<br>This benefit supplements coverage for which you are entitled under NYS Disability Law.                                                                 | 100%                                                                                                                                             | First of the Month Following Ninety (90) days                                                                          |
| Personal Accident Insurance<br>(Premium Only Plan-Section 125) offered through AFLAC | Pre-tax coverage for benefits payable to you and/or your family in the event of an injury caused by a covered accident including but not limited to travel costs, doctor/hospital visits and physical therapy, etc.                                  | 100%                                                                                                                                             | First of the Month Following Ninety (90) days                                                                          |
| Personal Cancer Insurance<br>(Premium Only Plan-Section 125) offered through AFLAC   | Pre-tax coverage for benefits payable to you and/or your family in the event of a first occurrence determination of cancer.<br>Benefits paid to you for use at your discretion to cover expenditures over and above those provided by major medical. | 100%                                                                                                                                             | First of the Month Following Ninety (90) days                                                                          |
| Dental Insurance<br>(Premium Only Plan-Section 125)                                  | Pre-tax coverage of dental expenditures for you and/or your family.                                                                                                                                                                                  | 100%                                                                                                                                             | First of the Month Following Ninety (90) days                                                                          |
| Group Term Life Insurance and AD&D Coverage offered through Mutual of Omaha          | Life insurance coverage for you of \$50,000.<br>Accidental Death & Dismemberment coverage for you of \$50,000. You can elect supplemental term life insurance in increments of \$10,000 up to a maximum of 5 times your annual salary.               | 100% for supplemental term life coverage. Spousal and Child(ren) insurance available.                                                            | First of the Month Following Ninety (90) days                                                                          |
| National Holidays                                                                    | 6 paid days annually.                                                                                                                                                                                                                                | N/A                                                                                                                                              | None                                                                                                                   |
| Paid Time Off                                                                        | 14 Days per year; weeks are not to be taken consecutively.<br><br>Additional 15 <sup>th</sup> floating PTO day in recognition of your birthday; to be used during the month of your birthday.                                                        | N/A                                                                                                                                              | First of the Month Following six (6) months service.<br><br>15 <sup>th</sup> PTO day eligible after 1 year of service. |
| Tuition Reimbursement†                                                               | Company will pay up to 100% of tuition for job-related courses subject to prior approval.                                                                                                                                                            | Any portion over company contribution.                                                                                                           | One (1) year                                                                                                           |
| Savings and Investment Plan                                                          | 401K defined contribution plan. Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule:                                                             | Deferral of up to 25% of annual gross wages but not to exceed \$18,000. Additional \$6,000 catch-up contribution for employees aged 50 and over. | One (1) year, over 21 years of age, and works more than 1000 hours per year.                                           |

## BENEFITS OVERVIEW- (Continued)

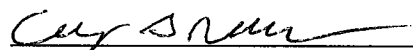
|  | <u>Employee Contribution</u> | <u>Employer</u> | Pre-tax and after-tax (Roth) programs available. |  |
|--|------------------------------|-----------------|--------------------------------------------------|--|
|  | <u>Match</u>                 |                 |                                                  |  |
|  | 1%                           | 1%              |                                                  |  |
|  | 2%                           | 2%              |                                                  |  |
|  | 3%                           | 3%              |                                                  |  |
|  | 4%                           | 3.5%            |                                                  |  |
|  | 5%                           | 4%              |                                                  |  |

\* These benefits do not constitute a contract with the employee and may be subject to change without notice.

† Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

**NOTE:** All Johnstone Supply employees are employed at will.

I have received a copy of this document.



Signature of Employee

Corey Graham 10/14/19

Name of Employee (please print) and date

## Receipt of Non-Harassment Policy

It is Johnstone Supply of Central NY's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual.

If an employee feels that he or she has been subjected to conduct which violates this policy, he or she should immediately report the matter to the Controller. If the employee is unable for any reason to contact this person, or if the employee has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact the President. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations.

I have read and I understand Johnstone Supply of Central NY's Non-Harassment Policy.

Employee's Printed Name: Corey Graham

Employee's Signature: Corey Graham

Position: Plant Desk

Date: 10/14/19

The signed original copy of this receipt should be given to management - it will be filed in your personnel file.



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## **Sexual Harassment Prevention Policy**

Johnstone Supply of Central NY is committed to maintaining a workplace free from sexual harassment. Sexual harassment is a form of workplace discrimination. All employees are required to work in a manner that prevents sexual harassment in the workplace. This Policy is one component of Johnstone Supply of Central NY's commitment to a discrimination-free work environment. Sexual harassment is against the law<sup>1</sup> and all employees have a legal right to a workplace free from sexual harassment and employees are urged to report sexual harassment by filing a complaint internally with Johnstone Supply of Central NY's HR, Controller or President.

Employees can also file a complaint with a government agency or in court under federal, state or local antidiscrimination laws.

### **Policy:**

1. Johnstone Supply of Central NY's policy applies to all employees, applicants for employment, interns, whether paid or unpaid, contractors and persons conducting business, regardless of immigration status, with Johnstone Supply of Central NY. In the remainder of this document, the term "employees" refers to this collective group.
2. Sexual harassment will not be tolerated. Any employee or individual covered by this policy who engages in sexual harassment or retaliation will be subject to remedial and/or disciplinary action (e.g., counseling, suspension, termination).
3. Retaliation Prohibition: No person covered by this Policy shall be subject to adverse action because the employee reports an incident of sexual harassment, provides information, or otherwise assists in any investigation of a sexual harassment complaint. Johnstone Supply of Central NY will not tolerate such retaliation against anyone who, in good faith, reports or provides information about suspected sexual harassment. Any employee of Johnstone Supply of Central NY who retaliates against anyone involved in a sexual harassment investigation will be subjected to disciplinary action, up to and including termination. All employees paid or unpaid interns, or non-employees<sup>2</sup> working in the workplace who believe they have been subject to such retaliation should inform a supervisor, manager, HR, Controller or President. All employees, paid or unpaid interns or non-employees who believe they have been a target of such retaliation may also seek relief in other available forums, as explained below in the section on Legal Protections.

<sup>1</sup> While this policy specifically addresses sexual harassment, harassment because of and discrimination against persons of all protected classes is prohibited. In New York State, such classes include age, race, creed, color, national origin, sexual orientation, military status, sex, disability, marital status, domestic violence victim status, gender identity and criminal history.

<sup>2</sup> A non-employee is (or is employed by) a contractor, subcontractor, vendor, consultant, or anyone providing services in the workplace. Protected non-employees include persons commonly referred to as independent contractors, "gig" workers and temporary workers. Also included are persons providing equipment repair, cleaning services or any other services provided pursuant to a contract with the employer.



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4. Sexual harassment is offensive, is a violation of our policies, is unlawful, and may subject Johnstone Supply of Central NY to liability for harm to targets of sexual harassment. Harassers may also be individually subject to liability. Employees of every level who engage in sexual harassment, including managers and supervisors who engage in sexual harassment or who allow such behavior to continue, will be penalized for such misconduct.
5. Johnstone Supply of Central NY will conduct a prompt and thorough investigation that ensures due process for all parties, whenever management receives a complaint about sexual harassment, or otherwise knows of possible sexual harassment occurring. Johnstone Supply of Central NY will keep the investigation confidential to the extent possible. Effective corrective action will be taken whenever sexual harassment is found to have occurred. All employees, including managers and supervisors, are required to cooperate with any internal investigation of sexual harassment.
6. All employees are encouraged to report any harassment or behaviors that violate this policy. Johnstone Supply of Central NY will provide all employees a complaint form for employees to report harassment and file complaints.
7. Managers and supervisors are **required** to report any complaint that they receive, or any harassment that they observe or become aware of, to HR, Controller or President.
8. This policy applies to all employees, paid or unpaid interns, and non-employees and all must follow and uphold this policy. This policy must be provided to all employees and should be posted prominently in all work locations to the extent practicable (for example, in a main office, not an offsite work location) and be provided to employees upon hiring.

## **What Is "Sexual Harassment"?**

Sexual harassment is a form of sex discrimination and is unlawful under federal, state, and (where applicable) local law. Sexual harassment includes harassment on the basis of sex, sexual orientation, self-identified or perceived sex, gender expression, gender identity and the status of being transgender.

Sexual harassment includes unwelcome conduct which is either of a sexual nature, or which is directed at an individual because of that individual's sex when:

- Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive work environment, even if the reporting individual is not the intended target of the sexual harassment;
- Such conduct is made either explicitly or implicitly a term or condition of employment; or



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- Submission to or rejection of such conduct is used as the basis for employment decisions affecting an individual's employment.

A sexually harassing hostile work environment includes, but is not limited to, words, signs, jokes, pranks, intimidation or physical violence which are of a sexual nature, or which are directed at an individual because of that individual's sex. Sexual harassment also consists of any unwanted verbal or physical advances, sexually explicit derogatory statements or sexually discriminatory remarks made by someone which are offensive or objectionable to the recipient, which cause the recipient discomfort or humiliation, which interfere with the recipient's job performance.

Sexual harassment also occurs when a person in authority tries to trade job benefits for sexual favors. This can include hiring, promotion, continued employment or any other terms, conditions or privileges of employment. This is also called "quid pro quo" harassment.

Any employee who feels harassed should report so that any violation of this policy can be corrected promptly. Any harassing conduct, even a single incident, can be addressed under this policy.

### **Examples of sexual harassment**

The following describes some of the types of acts that may be unlawful sexual harassment and that are strictly prohibited:

- Physical acts of a sexual nature, such as:
  - Touching, pinching, patting, kissing, hugging, grabbing, brushing against another employee's body or poking another employee's body;
  - Rape, sexual battery, molestation or attempts to commit these assaults.
- Unwanted sexual advances or propositions, such as:
  - Requests for sexual favors accompanied by implied or overt threats concerning the target's job performance evaluation, a promotion or other job benefits or detriments;
  - Subtle or obvious pressure for unwelcome sexual activities.
- Sexually oriented gestures, noises, remarks or jokes, or comments about a person's sexuality or sexual experience, which create a hostile work environment.
- Sex stereotyping occurs when conduct or personality traits are considered inappropriate simply because they may not conform to other people's ideas or perceptions about how individuals of a particular sex should act or look.
- Sexual or discriminatory displays or publications anywhere in the workplace, such as:
  - Displaying pictures, posters, calendars, graffiti, objects, promotional material, reading materials or other materials that are sexually demeaning or pornographic. This includes



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such sexual displays on workplace computers or cell phones and sharing such displays while in the workplace.

- Hostile actions taken against an individual because of that individual's sex, sexual orientation, gender identity and the status of being transgender, such as:
  - Interfering with, destroying or damaging a person's workstation, tools or equipment, or otherwise interfering with the individual's ability to perform the job;
  - Sabotaging an individual's work;
  - Bullying, yelling, name-calling.

### **Who can be a target of sexual harassment?**

Sexual harassment can occur between any individuals, regardless of their sex or gender. New York Law protects employees, paid or unpaid interns, and non-employees, including independent contractors, and those employed by companies contracting to provide services in the workplace. Harassers can be a superior, a subordinate, a coworker or anyone in the workplace including an independent contractor, contract worker, vendor, client, customer or visitor.

### **Where can sexual harassment occur?**

Unlawful sexual harassment is not limited to the physical workplace itself. It can occur while employees are traveling for business or at employer sponsored events or parties. Calls, texts, emails, and social media usage by employees can constitute unlawful workplace harassment, even if they occur away from the workplace premises, on personal devices or during non-work hours.

## **Retaliation**

Unlawful retaliation can be any action that could discourage a worker from coming forward to make or support a sexual harassment claim. Adverse action need not be job-related or occur in the workplace to constitute unlawful retaliation (e.g., threats of physical violence outside of work hours).

Such retaliation is unlawful under federal, state, and (where applicable) local law. The New York State Human Rights Law protects any individual who has engaged in "protected activity." Protected activity occurs when a person has:

- made a complaint of sexual harassment, either internally or with any anti-discrimination agency;
- testified or assisted in a proceeding involving sexual harassment under the Human Rights Law or other anti-discrimination law;
- opposed sexual harassment by making a verbal or informal complaint to management, or by



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simply informing a supervisor or manager of harassment;

- reported that another employee has been sexually harassed; or
- encouraged a fellow employee to report harassment.

Even if the alleged harassment does not turn out to rise to the level of a violation of law, the individual is protected from retaliation if the person had a good faith belief that the practices were unlawful. However, the retaliation provision is not intended to protect persons making intentionally false charges of harassment.

## **Reporting Sexual Harassment**

**Preventing sexual harassment is everyone's responsibility.** Johnstone Supply of Central NY cannot prevent or remedy sexual harassment unless it knows about it. Any employee paid or unpaid intern or non-employee who has been subjected to behavior that may constitute sexual harassment is encouraged to report such behavior to a supervisor, manager, HR, Controller or President. Anyone who witnesses or becomes aware of potential instances of sexual harassment should report such behavior to a supervisor, manager, HR, Controller or President.

Reports of sexual harassment may be made verbally or in writing. A form for submission of a written complaint is attached to this Policy, and all employees are encouraged to use this complaint form. Employees who are reporting sexual harassment on behalf of other employees should use the complaint form and note that it is on another employee's behalf.

Employees, paid or unpaid interns or non-employees who believe they have been a target of sexual harassment may also seek assistance in other available forums, as explained below in the section on Legal Protections.

## **Supervisory Responsibilities**

All supervisors and managers who receive a complaint or information about suspected sexual harassment, observe what may be sexually harassing behavior or for any reason suspect that sexual harassment is occurring, **are required** to report such suspected sexual harassment to the CFO or President.

In addition to being subject to discipline if they engaged in sexually harassing conduct themselves, supervisors and managers will be subject to discipline for failing to report suspected sexual harassment or otherwise knowingly allowing sexual harassment to continue.

Supervisors and managers will also be subject to discipline for engaging in any retaliation.



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## **Complaint and Investigation of Sexual Harassment**

**All** complaints or information about sexual harassment will be investigated, whether that information was reported in verbal or written form. Investigations will be conducted in a timely manner and will be confidential to the extent possible.

An investigation of any complaint, information or knowledge of suspected sexual harassment will be prompt and thorough, commenced immediately and completed as soon as possible. The investigation will be kept confidential to the extent possible. All persons involved, including complainants, witnesses and alleged harassers will be accorded due process, as outlined below, to protect their rights to a fair and impartial investigation.

Any employee may be required to cooperate as needed in an investigation of suspected sexual harassment. Johnstone Supply of Central NY will not tolerate retaliation against employees who file complaints, support another's complaint or participate in an investigation regarding a violation of this policy.

While the process may vary from case to case, investigations should be done in accordance with the following steps:

- Upon receipt of complaint, HR, Controller or President will conduct an immediate review of the allegations, and take any interim actions (e.g., instructing the respondent to refrain from communications with the complainant), as appropriate. If complaint is verbal, encourage the individual to complete the "Complaint Form" in writing. If he or she refuses, prepare a Complaint Form based on the verbal reporting.
- If documents, emails or phone records are relevant to the investigation, take steps to obtain and preserve them.
- Request and review all relevant documents, including all electronic communications.
- Interview all parties involved, including any relevant witnesses;
- Create a written documentation of the investigation (such as a letter, memo or email), which contains the following:
  - A list of all documents reviewed, along with a detailed summary of relevant documents;
  - A list of names of those interviewed, along with a detailed summary of their statements;
  - A timeline of events;
  - A summary of prior relevant incidents, reported or unreported; and
  - The basis for the decision and final resolution of the complaint, together with any corrective action(s).



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- Keep the written documentation and associated documents in a secure and confidential location.
- Promptly notify the individual who reported and the individual(s) about whom the complaint was made of the final determination and implement any corrective actions identified in the written document.
- Inform the individual who reported of the right to file a complaint or charge externally as outlined in the next section.

## **Legal Protections And External Remedies**

Sexual harassment is not only prohibited by Johnstone Supply of Central NY but is also prohibited by state, federal, and, where applicable, local law.

Aside from the internal process at Johnstone Supply of Central NY, employees may also choose to pursue legal remedies with the following governmental entities. While a private attorney is not required to file a complaint with a governmental agency, you may seek the legal advice of an attorney.

In addition to those outlined below, employees in certain industries may have additional legal protections.

### **State Human Rights Law (HRL)**

The Human Rights Law (HRL), codified as N.Y. Executive Law, art. 15, § 290 et seq., applies to all employers in New York State with regard to sexual harassment, and protects employees, paid or unpaid interns and non-employees, regardless of immigration status. A complaint alleging violation of the Human Rights Law may be filed either with the Division of Human Rights (DHR) or in New York State Supreme Court.

Complaints with DHR may be filed any time **within one year** of the harassment. If an individual did not file at DHR, they can sue directly in state court under the HRL, **within three years** of the alleged sexual harassment. An individual may not file with DHR if they have already filed a HRL complaint in state court.

Complaining internally to Johnstone Supply of Central NY does not extend your time to file with DHR or in court. The one year or three years is counted from date of the most recent incident of harassment.



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You do not need an attorney to file a complaint with DHR, and there is no cost to file with DHR.

DHR will investigate your complaint and determine whether there is probable cause to believe that sexual harassment has occurred. Probable cause cases are forwarded to a public hearing before an administrative law judge. If sexual harassment is found after a hearing, DHR has the power to award relief, which varies but may include requiring your employer to take action to stop the harassment, or redress the damage caused, including paying of monetary damages, attorney's fees and civil fines.

DHR's main office contact information is: NYS Division of Human Rights, One Fordham Plaza, Fourth Floor, Bronx, New York 10458. You may call (718) 741-8400 or visit: [www.dhr.ny.gov](http://www.dhr.ny.gov).

Contact DHR at (888) 392-3644 or visit [dhr.ny.gov/complaint](http://dhr.ny.gov/complaint) for more information about filing a complaint. The website has a complaint form that can be downloaded, filled out, notarized and mailed to DHR. The website also contains contact information for DHR's regional offices across New York State.

## **Civil Rights Act of 1964**

The United States Equal Employment Opportunity Commission (EEOC) enforces federal anti-discrimination laws, including Title VII of the 1964 federal Civil Rights Act (codified as 42 U.S.C. § 2000e et seq.). An individual can file a complaint with the EEOC anytime within 300 days from the harassment. There is no cost to file a complaint with the EEOC. The EEOC will investigate the complaint and determine whether there is reasonable cause to believe that discrimination has occurred, at which point the EEOC will issue a Right to Sue letter permitting the individual to file a complaint in federal court.

The EEOC does not hold hearings or award relief but may take other action including pursuing cases in federal court on behalf of complaining parties. Federal courts may award remedies if discrimination is found to have occurred. In general, private employers must have at least 15 employees to come within the jurisdiction of the EEOC.

An employee alleging discrimination at work can file a "Charge of Discrimination." The EEOC has district, area, and field offices where complaints can be filed. Contact the EEOC by calling 1-800-669-4000 (TTY: 1-800-669-6820), visiting their website at [www.eeoc.gov](http://www.eeoc.gov) or via email at [info@eeoc.gov](mailto:info@eeoc.gov).

If an individual filed an administrative complaint with DHR, DHR will file the complaint with the EEOC to preserve the right to proceed in federal court.

## **Local Protections**

Many localities enforce laws protecting individuals from sexual harassment and discrimination. An individual should contact the county, city or town in which they live to find out if such a law exists. For



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example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit [www.nyc.gov/html/cchr/html/home/home.shtml](http://www.nyc.gov/html/cchr/html/home/home.shtml).

## **Contact the Local Police Department**

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: Corey Graham

Print Name: Corey Graham

Date: 10/14/19



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## Smoke and Vape-Free Workplace Policy

### Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

### Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

### Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:

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## Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

## Statement of Understanding

I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.

Cory Graham

Employee Name

Cory Snew

Employee Signature

10/14/19

Date



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## EMPLOYEE CONFIDENTIALITY AGREEMENT

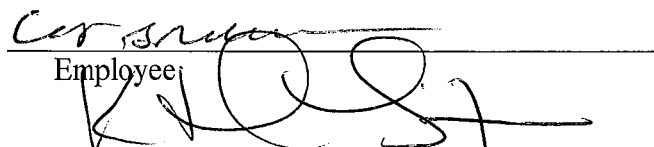
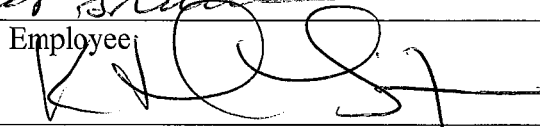
As a Member of **JOHNSTONE SUPPLY, Inc.** (the "Cooperative"), **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, is bound by the terms of the Bylaws of the Cooperative, and Patronage Agreement in place between our company and the Cooperative. Under these Bylaws and Patronage Agreement, we are prohibited from discussing, indicating, or disclosing all correspondences, documents, price information and other materials furnished to us by the Cooperative (other than those sales materials designated by the Cooperative for our customers) ("Confidential Information"). For example, we cannot discuss with or disclose to customers or vendors the costs for which we obtain products from the Cooperative or our vendors, or the terms of the specific programs we have with the Cooperative or these vendors. Such disclosure is grounds for termination of our Membership with the Cooperative and may make us liable for any damages as a result of a breach of confidentiality.

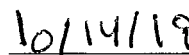
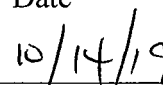
As employees of **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, we must conduct ourselves accordingly to protect the security and confidentiality of all such Confidential Information. Any breach of confidentiality by an employee is grounds for termination in accordance with company procedures. Following are the rules of conduct regarding confidentiality:

1. Never discuss our costs for products with anyone outside the company. If you are asked, merely say, "I don't know".
2. Never leave any publications, letters, or written material that discloses our costs, terms, or other Confidential Information anywhere other than in a secure place on the business premises.
3. No copies, electronic or paper, are to be made of any Confidential Information under any circumstances.
4. Never disclose quantities of merchandise that we purchase.
5. No employee is to accept any gifts, gratuities, or other incentives from any vendor, at any time.

Upon termination of employment, employees must return all documentation developed or acquired in the course of employment, including all copies of Confidential Information. This includes cost and program information from vendors, mailing lists, customer lists, accounting data, or any other material that has been deemed confidential.

I understand and agree to the terms of the confidentiality policy of **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**.

  
\_\_\_\_\_  
Employee:  
  
\_\_\_\_\_  
President, The KL Group, Inc.

  
\_\_\_\_\_  
Date  
  
\_\_\_\_\_  
Date



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## CUSTOMER CASH ACCOUNT APPLICATION

Lines in bold must be filled out

**Company Name:** Johnstone Supply / Carey Graham  
**Address:** 835 Canal St / 9400 Woods Rd  
**Address 2:** \_\_\_\_\_  
**City/ST/Zip:** Syracuse Bridgewater 13030  
**County:** Madison Madison  
**Phone:** 315-479-8800 **Fax #:** \_\_\_\_\_  
**Cell#:** 315-566-6807 **Other #:** \_\_\_\_\_  
**Do you require a PO:** Yes \_\_\_\_\_ No \_\_\_\_\_  
**Do you require a Job Number:** Yes \_\_\_\_\_ No \_\_\_\_\_  
**Mailings: Catalog:** Yes \_\_\_\_\_ No \_\_\_\_\_ **Flyers:** Yes \_\_\_\_\_ No \_\_\_\_\_  
**Type** \_\_\_\_\_ **of** \_\_\_\_\_ **Business:** \_\_\_\_\_  
**Email Address:** \_\_\_\_\_  
**Authorized Buyers:** \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
**I, Carey Graham** **SS# 091-80-1484**

**OR** **Driver's License #** \_\_\_\_\_

hereby personally guarantee to you, Johnstone Supply of CNY, any obligation of the above named Company and/or its successor. I also agree to bind myself to pay you on demand any sum, which may become due to you by the above named Company, whenever the above named Company fails to pay the same. If credit is granted, I agree to pay within established terms. If payment is not made within terms, I agree to pay all service charges. In the event this account is referred amount of twenty-five percent of the principal amount. If suit or action by an attorney amount of twenty-five percent of the principal amount. If suit or action by an attorney for collections, I agree to pay cost of collection equal to a minimum is instituted, I promise to pay attorney fees in said suit or action. Venue shall be in the state and county of Johnstone Supply's choice. Applicant specifically understands that they are waiving their right in choice of venue. Applicant agrees to pay interest and service charges at the highest rate permitted by law.

**Signed:** Carey Graham

**Date:** 10/14/19

**CASH ACCOUNTS MUST MAINTAIN ANNUAL PURCHASES OF AT  
LEAST \$750 TO REMAIN OPEN.**

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## **AUTHORIZATION TO DEDUCT EXPENSES**

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only.

In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

\* \* \* \*

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.

Employee

6/14/19

Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date